

Warsaw, October 6, 2023

Decision

DOKE.561.10.2023

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2023, item 775, consolidated text) in connection with Article 7 paragraphs 1 and 2 and Article 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws 2019, item 1781) and based on Article 57 paragraph 1 letters a) and h), Article 58 paragraph 2 letter b) in connection with Article 31 and Article 58 paragraph 1 letters a) and e) of the Regulation of the European Parliament and of the Council EU 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (Official Journal of the EU L 119 of May 4, 2016, p. 1, with amendments published in Official Journal of the EU L 127 of May 23, 2018, p. 2, and in Official Journal of the EU L 74 of March 4, 2021, p. 35), hereinafter referred to as the "Regulation 2016/679", after conducting an ex officio administrative proceeding regarding the imposition of an administrative monetary penalty on Ms. A. D., conducting business under the name: "S." based in W. at ul. (...), the President of the Personal Data Protection Office issues a reprimand to Ms. A. D., conducting business under the name: "S." based in W. at ul. (...), for violating the provisions of Article 31 and Article 58 paragraph 1 letters a) and e) of Regulation 2016/679, consisting of a lack of cooperation with the President of the Personal Data Protection Office in the performance of his tasks and failing to provide the President of the Personal Data Protection Office access to personal data and information necessary to fulfill his tasks in the proceedings with reference numbers: DS.523.4902.2022 and DS.523.6918.2022.

JUSTIFICATION

Factual Background

A complaint was submitted to the Personal Data Protection Office by Mr. B. S., residing in W. at ul. (...) (hereinafter referred to as the "Complainant"), regarding irregularities in the processing of his personal data by Ms. A. D., conducting business under the name: "S." based in W. at ul. (...) (hereinafter referred to as the "Entrepreneur"), consisting of processing the Complainant's personal data for marketing purposes without a legal basis, in connection with the advertisement of the services of the beauty salon (...) at ul. (...) in W. In connection with the above, the President of the Personal Data Protection Office (hereinafter referred to as the "President of UODO") initiated an explanatory proceeding with reference number DS.523.4902.2022.

As part of the aforementioned administrative proceeding – by letter dated November 10, 2022 – the President of UODO requested the Entrepreneur to respond (within 7 days from the date of delivery of the aforementioned letter) to the content of the complaint and to provide explanations by answering detailed questions regarding the matter, namely:

- a) "whether, and if so, when (please indicate the specific date), on what legal basis (please specify the specific provision(s) of law), from what source, for what purpose and to what extent you, as the Entrepreneur, obtained the Complainant's personal data, including his phone number (...),
- b) whether, and if so, on what legal basis (please specify the specific provision(s) of law), for what purpose and to what extent you, as the Entrepreneur, are currently processing and for how long and on what legal basis you will process the Complainant's personal data, including his phone number (...),
- c) whether the Complainant consented to the processing of his personal data, including his phone number (...), for marketing purposes, and if so, when and what the content of that consent was – I request the submission of a copy of the document that indicates the content of that consent, if it was granted by the Complainant,
- d) whether the Complainant requested the Entrepreneur to delete his personal data, and if so, when, how the Entrepreneur responded to his request; if the deletion of the Complainant's personal data was refused, please indicate the reason and how long the data will be processed and on what legal basis (please specify the grounds that will result in the complete deletion of the Complainant's personal data)".

This request, addressed to the delivery address of the Entrepreneur disclosed in the Central Register and Information on Economic Activity (hereinafter referred to as "CEIDG"), after two unsuccessful notifications, was returned to UODO on November 29, 2022, with the annotation "RETURNED, not collected in time", and should be considered as properly delivered to the Entrepreneur, in accordance with the wording of Article 44 of the Act of June 14, 1960 – Code of Administrative Procedure (Journal of Laws 2023, item 775, consolidated text), hereinafter referred to as "k.p.a.". The Entrepreneur did not respond in any way to the supervisory authority's request within the time limit set for taking the actions to which he was summoned.

In connection with the above, the President of UODO again – by letter dated February 16, 2023 – requested the Entrepreneur to provide explanations. This letter, addressed to the delivery address of the Entrepreneur disclosed in CEIDG, was not collected by him. The correspondence, after two unsuccessful notifications, was returned on March 7, 2023, to UODO with the annotation "RETURNED, not collected in time", and was subsequently considered as properly delivered to the Entrepreneur, in accordance with Article 44 of the Code of Administrative Procedure (k.p.a.) in the mode of substitute delivery. The Entrepreneur did not provide any response to this letter either. Both summonses directed to the Entrepreneur contained a notice indicating that failure to submit explanations in the matter would constitute a breach of the obligation to cooperate with the supervisory authority, which is the President of the Personal Data Protection Office (UODO), resulting in the imposition of an administrative monetary penalty on the Entrepreneur in accordance with Article 83(5)(e) of Regulation 2016/679.

In order to determine the reasons for the lack of response to the letters from the President of UODO, an employee of the Department of Organization, Penalties, and Enforcement contacted the Entrepreneur by phone on March 28, 2023, at the phone number: (...), provided in the Central Register and Information on Economic Activity (CEIDG). The Entrepreneur then informed that the reason for the inability to receive correspondence addressed to him was due to surgeries he had undergone and the fact that he was on a long-term medical leave. At the same time, having been informed of the obligation to promptly respond to the letters from the President of UODO dated November 10, 2022, and February 16, 2023, the Entrepreneur expressed his willingness to cooperate with the personal data protection authority. For this purpose, in a letter dated April 5, 2023, the Entrepreneur submitted concise explanations regarding the case with reference number DS.523.4902.2022 (indicating, among other things, that Mr. B. S. was entered into the Entrepreneur's database based on consent expressed by the Complainant between February 1 and March 9, 2021), and additionally requested the President of UODO to extend the deadline for submitting additional information necessary to investigate the allegations raised by the Complainant.

Considering the Entrepreneur's request, the President of UODO – in a letter dated April 21, 2023 – again requested him to submit full explanations in the matter, within a non-extendable deadline until May 15, 2023. At the same time, the Entrepreneur was informed that failure to submit explanations in the matter would constitute a breach of the obligation to cooperate with the supervisory authority, as a consequence of which the President of UODO may consider imposing an administrative monetary penalty on the Entrepreneur based on Article 83(5)(e) of Regulation 2016/679. This letter, sent to the address: (...), after two notifications, was not collected by the Entrepreneur and returned to UODO on May 10, 2023, with the annotation "RETURNED not collected in time" – thus it should be considered as properly delivered to the Entrepreneur, in accordance with the provisions of Article 44 k.p.a. Despite earlier declarations, the Entrepreneur did not submit explanations within the additional deadline set by the President of UODO.

In a letter dated June 1, 2023, sent to the electronic inbox of the ePUAP Office for Personal Data Protection, i.e., /UODO/SkrytkaESP, the Entrepreneur requested that all correspondence regarding the case with reference number DS.523.4902.2022 be directed electronically to the address of the Entrepreneur's individual inbox, i.e., (...). In this letter – despite assurances of the intention to cooperate with the supervisory authority – the Entrepreneur did not provide any explanations that would allow for substantive consideration of the case. In a letter dated June 28, 2023, sent via the

ePUAP platform, the Entrepreneur submitted terse explanations, which were insufficient to assess the validity of Mr. B. S.'s complaint. As indicated by the Entrepreneur, there is no client with the name and surname of the Complainant in his databases. The phone numbers listed in the database (...) are manually transcribed from patient cards and are used for communication with patients. Patient cards, in turn, are filled out by the patients themselves, which sometimes results in the phone number provided by the patient – written unclearly – being incorrectly transferred to the database, leading to erroneous SMS messages being sent. The phone number provided in the complaint, i.e., (...), was probably entered into the system as incorrect and then mistakenly used to send SMS correspondence. The likelihood of this is increased by the fact that the Entrepreneur has a client in the database with a very similar digit configuration in the phone number. The assertions presented by the Entrepreneur were in complete contradiction to his explanations contained in the letter dated April 5, 2023, in which the Entrepreneur indicated that the personal data of the Complainant were processed based on consent expressed by him.

At the same time, a complaint was received by the Office for Personal Data Protection from Ms. A. P., residing in Warsaw at ul. (...) (hereinafter referred to as the "Complainant") regarding irregularities in the processing of her personal data by Ms. A. D., conducting business under the name: "S." with its registered office in W. at ul. (...), within which the Clinic (...) operates, concerning the failure to comply with the request for the deletion of the Complainant's personal data associated with her phone number. In connection with the above, the President of UODO initiated explanatory proceedings with reference number DS.523.6918.2022.

As part of the aforementioned administrative proceedings – in a letter dated January 4, 2023 – the President of UODO addressed the Entrepreneur, calling on him to respond (within 7 days from the date of delivery of the aforementioned letter) to the content of the complaint and to provide explanations by answering detailed questions regarding the matter, namely:

- a) "whether, and if so, on what legal basis, for what purpose and to what extent the Administrator (which is the Entrepreneur) processed and currently processes the personal data of the Complainant,
- b) whether, and if so, when the Complainant contacted the Administrator with a request for the deletion of her personal data from the Administrator's databases, what was the Administrator's position in this regard, and when did the Administrator respond to the Complainant's request (please send correspondence in this regard),
- c) Whether the Administrator disclosed the personal data of the Complainant by sending an SMS message with a visible list of the recipients' phone numbers, and if so, when, to what extent (what data was visible), to how many people, for what purpose, and on what legal basis? If so, please provide a copy of the SMS message.

This letter, addressed to the permanent place of business of the Entrepreneur as disclosed in the Central Register and Information on Economic Activity (CEIDG), was returned to the President of the Personal Data Protection Office (UODO) on January 25, 2023, with the annotation "RETURNED, not collected in time" after two unsuccessful delivery attempts. It should be considered duly delivered to the Entrepreneur in accordance with the provisions of Article 44 of the Code of Administrative Procedure (k.p.a.), by means of substitute delivery.

The Entrepreneur did not respond in any way to the request of the supervisory authority within the time frame set for taking the actions to which he was summoned. Therefore, the President of UODO again – in a letter dated March 27, 2023, sent to the permanent place of business of the Entrepreneur – summoned him to provide explanations and evidence necessary for the substantive consideration of the case initiated by the complaint of Ms. A. P. In this letter, the Entrepreneur was informed that failure to provide a comprehensive response to the request could result, due to lack of cooperation with the supervisory authority and failure to ensure access to personal data and information necessary for the President of UODO to perform his tasks, in the imposition of an administrative monetary penalty in accordance with Article 83(5)(e) of Regulation 2016/679. Despite two delivery attempts, the aforementioned correspondence was not collected by the Entrepreneur; it was returned to UODO on April 13, 2023, with the annotation "RETURNED, not collected in time," and was deemed duly

delivered to the Entrepreneur in accordance with the provisions of Article 44 k.p.a.

In the absence of a response to the letters from the President of UODO, an employee of the Department of Organization, Penalties, and Enforcement contacted the Entrepreneur by phone on May 16, 2023, at the phone number (...) provided in CEIDG, informing him about the progress of the complaint proceedings under reference DS.523.6918.2022, as well as the obligation to respond to the letters from the President of UODO dated January 4, 2023, and March 27, 2023, addressed to the Entrepreneur in the aforementioned administrative proceedings. The Entrepreneur committed to promptly provide the necessary explanations regarding the matter.

In a letter dated June 1, 2023, sent to the electronic inbox of the UODO via ePUAP, i.e., /UODO/SkrytkaESP, the Entrepreneur requested that all correspondence regarding the case under reference DS.523.6918.2022 be directed electronically to the address of the Entrepreneur's individual inbox, i.e., (...). In this letter, the Entrepreneur informed about his poor health condition but did not provide any explanations to which he was summoned. Subsequently, in a letter dated June 21, 2023, sent to UODO via the ePUAP platform, the Entrepreneur submitted brief explanations, indicating that the phone number (...) (mentioned in the letters sent to the Entrepreneur by the President of UODO) is not associated in the vaccination system of the point (...) located at ul. (...) in W. with the Complainant, Ms. A. P. The Entrepreneur also explained that during the introduction of subsequent doses of COVID-19 vaccinations, patients received information from the system or from the phone number belonging to the vaccination point regarding the possibility of receiving the next dose, in accordance with the general recommendations of the National Health Fund. However, the Entrepreneur did not respond in any way to the detailed questions posed by the supervisory authority in the letters from the President of UODO dated January 4, 2023, and March 27, 2023.

The above circumstances of the factual state were established by the President of UODO based on the entirety of the official correspondence conducted between the Entrepreneur and the President of UODO, which is included in the files of the administrative proceedings under references:

DS.523.4902.2022 and DS.523.6918.2022. This correspondence fully documents all attempts made by the President of UODO to gain access to personal data and information needed to fulfill his tasks – that is, to consider the aforementioned complaint cases. On the other hand, it serves as direct evidence of the lack of cooperation from the Entrepreneur with the President of UODO in the performance of his duties.

Proceedings

Due to the failure of the Entrepreneur to provide the information necessary to resolve the cases under references: DS.523.4902.2022 and DS.523.6918.2022, the President of UODO initiated ex officio – based on Article 83(5)(e) of Regulation 2016/679 – this administrative proceeding, reference DOKE.561.10.2023, concerning the imposition of an administrative monetary penalty on the Entrepreneur for violating Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679. The Entrepreneur was informed of the initiation of the proceedings in a letter dated June 28, 2023, sent via the ePUAP platform to the address of the Entrepreneur's individual inbox, i.e., (...). This letter was delivered to the Entrepreneur on July 11, 2023, at 12:14 PM, in accordance with the official confirmation of delivery of the letter. In this letter, the Entrepreneur was obliged – in order to determine the basis for the penalty calculation, based on Article 101a(1) of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781, hereinafter referred to as "u.o.d.o.") – to provide information about the income he achieved in 2022. The Entrepreneur was also informed that the circumstance of providing comprehensive explanations...

explanations that the President of the UODO previously requested in proceedings with reference numbers: DS.523.4902.2022 and DS.523.6918.2022, may have a mitigating effect on the amount of the administrative monetary penalty imposed in this administrative proceeding or may result in the decision to refrain from imposing it. Furthermore, the Entrepreneur was informed of the possibility to express their opinion – prior to the issuance of the administrative decision – regarding the collected evidence and materials as well as the submitted requests.

In response to the information about the initiation of proceedings by the President of the UODO

regarding the imposition of an administrative monetary penalty – letters dated July 12, 2023 (delivered to the UODO via the ePUAP platform on July 13, 2023) – the Entrepreneur submitted extensive explanations in both aforementioned complaint cases. Regarding the complaint of Mr. B. S., the Entrepreneur maintained their previous position expressed in the letter dated June 28, 2023, firmly denying that the personal data of the Complainant – in terms of name, surname, address, or phone number – were processed in the Entrepreneur's resources. At the same time, as explained, a single SMS message with the current offer of the Entrepreneur's beauty salon was sent to the Complainant's phone number, i.e., (...).

The Entrepreneur was unable to clearly indicate how the mentioned contact details of the Complainant were obtained, explaining at the same time that it could have been the result of incorrectly transcribing the phone number from another patient's card into the Entrepreneur's database or that the Complainant – through internet portals: (...) or (...), or by phone – contacted the Entrepreneur to request the current offer of the salon.

Regarding the complaint of Ms. A. P., the Entrepreneur informed that the Complainant is a patient of the vaccination point run by the Entrepreneur, located at ul. (...) in W. The phone number indicated in the complaint, i.e., (...) – entered into the system used by the Entrepreneur (...) – is not assigned in this system and does not belong to the Complainant, but to another person whose legal guardian is Ms. A. P. As explained by the Entrepreneur, a reminder SMS was sent to this number on December 21, 2022, regarding the possibility of receiving the next dose of the COVID-19 vaccine, which was in accordance with the then-current recommendations of the Ministry of Health. Thus, this message aimed to inform the patient about the possibility of continuing COVID-19 prevention at the existing vaccination point, rather than having a marketing character. A message of a similar nature was also sent on February 22, 2023, to the phone number assigned to Ms. A. P. Due to the fact that messages addressed to patients of the vaccination point, sent by the Entrepreneur in 2022, have already been deleted, the Entrepreneur was unable to determine whether the phone number (...) was included in a specific mailing group with a visible list of recipient phone numbers. However, the Entrepreneur assured that he himself and one authorized employee of the vaccination point were responsible for creating the mailing list. The data for sending were obtained directly from the system (...), hence there is no possibility that they were unlawfully disseminated in any way.

Regarding the violation of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679, the Entrepreneur explained that the lack of receipt of correspondence, letters, or notifications "is not due to his ignorance, reluctance, attempt to evade responsibility, or irresponsibility of the entrepreneur, but rather due to very serious health problems." The Entrepreneur (...) underwent three spinal surgeries, which involved numerous hospital stays, moving in a wheelchair and on crutches, very long-term rehabilitation, and lying in bed due to the inability to walk.

The Entrepreneur also raised that at the address indicated in the CEIDG for correspondence (...), there is the Entrepreneur's office, open daily from (...) to (...). However, the postal worker from Poczta Polska does not deliver mail to the office (where it could be picked up by a person employed as a secretary), but leaves a notification about the parcel in the mailbox – to which the Entrepreneur has made numerous complaints without success. In connection with the situation, the Entrepreneur expressed his regret and declared his willingness to cooperate further with the supervisory authority.

Due to the necessity to supplement the evidence material, in letters dated August 24, 2023, and September 25, 2023, the Entrepreneur submitted additional explanations regarding the case with reference number DS.523.4902.2022. The President of the UODO, considering the gathered evidence material sufficient to conclude the proceedings initiated by Mr. B. S.'s complaint, issued an administrative decision on September 29, 2023, reference number DS.523.4902.2022, giving the Entrepreneur a reprimand for violating Article 6(1) of Regulation 2016/679, consisting of processing the personal data of Mr. B. S., residing in W. at ul. (...), in the scope of the phone number (...), for marketing purposes, without legal basis. This decision is not final.

After reviewing all the evidence collected in the case, the President of the Personal Data Protection

Office considered the following.

Legal Provisions

According to Article 57(1)(a) of Regulation 2016/679, the President of the UODO, as the supervisory authority within the meaning of Article 51 of Regulation 2016/679, monitors and enforces the application of this regulation within its territory. Within the scope of its competencies, the President of the UODO, among other things, examines complaints lodged by the person to whom the data relates, or by an entity, organization, or association in accordance with Article 80, in

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In the appropriate scope, it conducts proceedings regarding these complaints and informs the complainant about the progress and results of these proceedings within a reasonable time (Article 57(1)(f) of Regulation 2016/679). It also conducts proceedings concerning the application of this regulation, including based on information received from another supervisory authority or another public body (Article 57(1)(h) of Regulation 2016/679).

To enable the realization of the tasks defined in this manner, the President of the UODO has a number of powers specified in Article 58(1) of Regulation 2016/679 concerning the conducted proceedings, including the power to order the controller and the processor to provide any information necessary to fulfill his tasks (Article 58(1)(a) of Regulation 2016/679) and the power to obtain access from the controller and the processor to all personal data and all information necessary to fulfill his tasks (Article 58(1)(e) of Regulation 2016/679).

A violation of the provisions of Regulation 2016/679, resulting in a breach of the powers of the authority specified in Article 58(1), is subject to an administrative fine of up to EUR 20,000,000, and in the case of an enterprise, up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

Additionally, both the controller and the processor are obliged, at the request of the supervisory authority, to cooperate with it in the performance of its tasks, as provided in Article 31 of Regulation 2016/679. Failure to comply with this obligation is subject to an administrative fine of up to EUR 10,000,000, and in the case of an enterprise, up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

The President of the UODO is also entitled to a number of remedial powers specified in Article 58(2) of Regulation 2016/679, including the right to issue a reprimand to the controller or the processor in the event of a violation of the provisions of Regulation 2016/679 by processing operations. According to Recital 148 of Regulation 2016/679, to make the enforcement of the provisions of Regulation 2016/679 more effective, sanctions, including administrative fines, should be imposed for violations, in addition to or instead of appropriate measures imposed under Regulation 2016/679 by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a reprimand. However, attention should be paid to the nature, gravity, and duration of the violation, whether the violation was not intentional, the actions taken by the controller to minimize damage, the degree of responsibility or any relevant previous violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the controller or the processor, adherence to codes of conduct, and any other aggravating or mitigating factors.

Pursuant to Article 60 of the Personal Data Protection Act (u.o.d.o.), proceedings regarding violations of personal data protection regulations are conducted by the President of the UODO. Furthermore, Article 7(1) of the u.o.d.o. states that in matters not regulated by this act, the provisions of the Act of June 14, 1960, the Code of Administrative Procedure (Dz. U. 2022, item 2000, as amended, hereinafter referred to as "k.p.a.") apply to administrative proceedings before the President of the UODO (including proceedings regarding the imposition of administrative fines referred to in Chapter 11 of the u.o.d.o.). According to Article 7(2) of the u.o.d.o., these proceedings are single-instance proceedings.

According to the wording of Article 44 § 4 of the k.p.a. in connection with Article 44 § 1 of the k.p.a., the

fiction of delivery occurs upon the expiration of the last day of the period, which is 14 days, in the case of delivering a letter to a natural person at their residence or workplace by a postal operator, and the letter is left in the case files.

****Legal Assessment****

Referring the above-mentioned provisions of Regulation 2016/679 to the established factual state in this case, it should first be considered whether the Entrepreneur is the addressee of the obligations referred to in Articles 31 and 58(1)(a) and (e) of Regulation 2016/679, the violation of which is subject to an administrative fine under Articles 83(4) and (5) of Regulation 2016/679.

Both of the aforementioned provisions of Regulation 2016/679 impose procedural obligations—within the proceedings conducted by the President of the UODO—on controllers and processors. From the content of the complaints of Mr. B. S. and Ms. A. P. (which are consistent in this regard with the explanations of the Entrepreneur), it follows that the Entrepreneur, in connection with the business activity conducted by him, sent SMS messages containing information about the services provided by the Entrepreneur to the phone numbers indicated by the Complainants, i.e., (...). Thus, the personal data of the Complainants were used by the Entrepreneur for the purpose of marketing his own services—which, according to the wording of Article 4(2) of Regulation 2016/679, constitutes their processing by the Entrepreneur.

Therefore, it can be concluded that the Entrepreneur, in the factual state described by the Complainants, acts as the controller with respect to the personal data of Mr. B. S. and Ms. A. P. Consequently, since the Entrepreneur is the controller in the sense of Article...

4 point 7 of Regulation 2016/679, the President of the UODO was authorized – in accordance with Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679 – to demand from the Entrepreneur the provision of personal data and information necessary for the performance of his tasks, in this case for the substantive examination of cases with reference numbers: DS.523.4902.2022 and DS.523.6918.2022, and the Entrepreneur – on the same legal basis – was obliged to present such information.

It should be emphasized that the President of the UODO, in order to establish the factual state of the case with reference number DS.523.4902.2022, repeatedly – through letters dated November 10, 2022, February 16, 2023, and April 21, 2023 – addressed the Entrepreneur with a request for explanations by providing answers to detailed questions concerning the case. However, the Entrepreneur did not receive any of the aforementioned letters, as a result of which he did not respond within the time frame set by the supervisory authority to the allegations raised by the Complainant – thereby preventing their comprehensive examination by the supervisory authority. This situation was not changed by the fact that an employee of the Department of Organization, Penalties, and Enforcement of the UODO established direct telephone contact with the Entrepreneur on March 28, 2023, informing him about the progress of the case, primarily about the necessity to respond to the letters sent to him by the President of the UODO regarding the matter.

Having gained knowledge of the ongoing administrative proceedings, the Entrepreneur did not provide the information necessary to establish the factual state of the case – even in the situation where an additional, extended deadline was set for their submission. Although, in letters dated April 5, 2023, and June 28, 2023, the Entrepreneur submitted explanations in which he referred to the circumstances of obtaining and subsequently using the personal data of the Complainant, it should be noted that these explanations were insufficient and internally contradictory (see point 8 of the justification of this decision). Thus, due to the inconsistency of the statements made by the Entrepreneur, there were no grounds to consider them a credible source of evidence at that stage of the proceedings – particularly since the Entrepreneur did not provide any other evidence to support them. Given the Entrepreneur's attitude, which did not contribute to establishing the course of events in the case DS.523.4902.2022, but merely necessitated further prolongation of the proceedings to rectify the aforementioned inaccuracies, the President of the UODO took the position that such actions by the Entrepreneur – although seemingly indicative of his active participation in the proceedings – could not be positively

assessed from the perspective of due cooperation with the supervisory authority. The lack of cooperation with the personal data protection authority, indisputable in light of the evidence gathered in this case, resulted in the necessity to initiate this administrative proceeding concerning the imposition of an administrative monetary penalty on the Entrepreneur.

Similar circumstances were found in the administrative proceeding with reference number DS.523.6918.2022, in which the President of the UODO twice – through letters dated January 4, 2023, and March 27, 2023 – requested the Entrepreneur to send information necessary for the examination of the case initiated by the complaint of Ms. A. P. The Entrepreneur, also in this case, did not respond to the correspondence directed to him, as a result of which he did not address the request of the personal data protection authority within the deadline. Only the telephone contact with the Entrepreneur established on May 16, 2023, by an employee of the Department of Organization, Penalties, and Enforcement of the UODO resulted in the Entrepreneur submitting a brief explanation in this matter through a letter dated June 21, 2023 (see point 14 of the justification of this decision); however, these were far from complete and did not contain answers to the detailed questions posed by the supervisory authority in the correspondence sent to the Entrepreneur. Thus, due to the general nature of the aforementioned explanations, the degree of usefulness of the information provided by the Entrepreneur should be assessed as minimal, and the cooperation with the supervisory authority as insufficient. The above – while simultaneously taking into account the attitude of the Entrepreneur presented in the proceedings with reference number DS.523.4902.2022 – became the basis for initiating this proceeding concerning the imposition of an administrative monetary penalty in connection with the violation of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679, as a result of which the Entrepreneur only then submitted extensive and substantive explanations allowing for the examination of the validity of both complaints lodged against his actions.

Moreover, in the opinion of the President of the UODO, the justification presented by the Entrepreneur in the letter dated July 12, 2023, regarding the lack of response to his requests (see point 19 of the justification of this decision), although credible, does not constitute a basis for excluding the Entrepreneur's liability for the established violation. The fact that the Entrepreneur is facing health problems, due to which he is unable to independently perform all obligations related to his business activities, does not relieve the Entrepreneur of the obligation to provide the President of the UODO, at his request, with all information necessary for the supervisory authority to perform its tasks. The Entrepreneur, realizing the difficulties in personally performing tasks related to handling incoming correspondence, including receiving letters sent to the address indicated in the CEIDG as the permanent place of conducting business or the address for deliveries to the Entrepreneur, should have appointed a proxy for this purpose – at least for the duration of his incapacity. Similarly, in the case of difficulties in timely preparing responses to the letters of the President of the UODO, the Entrepreneur should have considered the justification for appointing a proxy.

****Power of Attorney****

The entrepreneur, deciding to manage their affairs independently, should accept the risks arising from this decision and the possible consequences – in this case, the supervisory authority's recognition that the lack of receipt of correspondence directed to the Entrepreneur will constitute a violation of the obligation to cooperate with the President of the UODO. Moreover, a manifestation of this obligation's violation in the proceedings under case number DS.523.4902.2022 was also the submission by the Entrepreneur of explanations that were significantly incomplete and, in certain aspects, mutually exclusive. The actions described of the Entrepreneur (providing terse, evasive responses to specific questions from the supervisory authority that do not require specialized knowledge in the field of personal data protection), which hindered the establishment of the factual state of the case initiated by Mr. B. S.'s complaint, cannot remain without any reaction from the supervisory authority.

At the same time, however, taking into account the explanations provided by the Entrepreneur in these proceedings, the President of the UODO took the position that the identified violation, consisting of a lack of cooperation with the President of the UODO in the performance of his duties and the failure to provide the President of the UODO access to personal data and information necessary for the

execution of his tasks, was not intentional but resulted from the personal situation concerning the Entrepreneur. At the same time, this violation was rectified by the Entrepreneur immediately after becoming aware of the ongoing proceedings regarding the imposition of an administrative monetary penalty, i.e., upon the submission of additional explanations to the UODO on July 12, 2023 (subsequently supplemented – in the context of the proceedings under case number DS.523.4902.2022 – by letters dated August 24, 2023, and September 25, 2023). It should be noted that these explanations contributed to the issuance of a resolution regarding Mr. B. S.'s complaint, concluded with the administrative decision of the President of the UODO dated September 29, 2023.

Considering the active attitude of the Entrepreneur, the President of the UODO deemed it justified to issue a reprimand regarding the identified violation of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679, while also accepting that, in light of the criteria specified in Article 83(2) of Regulation 2016/679, it would be effective and sufficient. However, it should be noted that in the event of a similar occurrence in the future, any reprimand issued by the President of the UODO against the Entrepreneur will be taken into account when assessing the conditions justifying the imposition of an administrative penalty, in accordance with the principles specified in Article 83(2) of Regulation 2016/679 and will be considered to the Entrepreneur's detriment.

In this factual and legal state, the President of the UODO decided as stated in the operative part of this decision.

****Instruction****

The decision is final. The Party has the right to file a complaint with the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the UODO (address: ul. Stawki 2, 00 – 193 Warsaw). The fee for the complaint is 200 PLN. In proceedings before the Provincial Administrative Court, the Party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the Party's request submitted before the initiation of the proceedings or during the proceedings. The application is free of court fees.

****Print Article****

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